

HOUSE No. 649**The Commonwealth of Massachusetts**

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for the creation of a permanent commission relative to the education of American Indian and Alaska Native residents of the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/13/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>5/12/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>4/7/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>4/7/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>4/7/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>4/7/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/7/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/7/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>4/15/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>5/12/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/12/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>7/28/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>7/28/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/28/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>7/28/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>1/6/2026</i>

HOUSE No. 649

By Representative Montañó of Boston, a petition (accompanied by bill, House, No. 649) of Samantha Montañó relative to the creation of a permanent commission relative to the education of American Indian and Alaska Native residents. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for the creation of a permanent commission relative to the education of American Indian and Alaska Native residents of the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6 of the General Laws, as appearing in the 2016 Official Edition, is hereby
2 amended by inserting after section 159 the following section:-

3 Section 159A. There shall be a permanent commission on American Indian and Alaska
4 Native education, which shall consist of 17 persons as follows: 1 person appointed by
5 Department of Early Education and Care, 1 person appointed by Department of Elementary and
6 Secondary Education, 1 person appointed by Department of Higher Education, 2 persons
7 appointed by Department of Public Health, 1 person appointed by Department of Mental Health,
8 1 person appointed by Department of Youth Services, 1 person appointed by Department of
9 Veterans' Services, 1 person appointed by Division of Prevention and Wellness, 1 person
10 appointed by Interagency Council on Housing and Homelessness, 7 persons appointed by
11 Massachusetts Commission on Indian Affairs in consultation with tribal governments and
12 intertribal organizations. Members of the commission shall be drawn from diverse racial, ethnic,

religious, age, sexual-orientation and socio-economic backgrounds from throughout the commonwealth. Members shall be considered special state employees for purposes of chapter 268A of the General Laws. The commission shall be an independent agency of the commonwealth and shall not be subject to the control of any other department or agency.

Members shall serve terms of 2 years and until their successors are appointed. Vacancies in the membership of the commission shall be filled by the original appointing authority for the balance of the unexpired term. Appointments shall be made in consultation with tribal governments and intertribal organizations. Nominations shall be solicited between August 1 and November 1 of each year through an open application process using a uniform application that is widely distributed throughout the state. The commission shall elect annually from among its members a chair. The chair of the commission may designate on an annual basis 1 or more commission members as vice-chairs of the commission, and may appoint on an annual basis members of the commission as chairs of advisory committees on high school education, higher education, human services and youth. The chair of the commission may create other advisory committees as needed after consultation with the commission. The members of the commission shall receive no compensation for their services, but shall be reimbursed for any usual and customary expenses incurred in the performance of their duties.

The commission shall investigate the use of resources from both the public and private sectors to enhance and improve the ability of state agencies to provide educational opportunities and improving educational outcomes for all American Indian and Alaska Native students in order to further tribal self-determination and to help ensure that students have an opportunity to learn their heritage languages and histories and to receive complete and competitive educations that prepare them for college, careers, and productive satisfying lives. In furtherance of that

responsibility, the commission shall: (1) work in partnership with the department of education and the department of public health to create school-based and community-based programs focusing on suicide prevention, violence intervention, and the promotion of zero-tolerance policies regarding harassment and discrimination against American Indians and Alaska Natives; and (2) make recommendations about policies and programs supporting American Indians and Alaska Natives on an ongoing basis to the department of education, the department of public health and the executive office of health and human services. The commission shall annually, on or before June 2, report the results of its findings and activities of the preceding year and make recommendations relating to the concerns of American Indians and Alaska Natives to the governor and to the clerks of the senate and house of representatives.

The powers of the commission shall include but not be limited to the following: (1) to use voluntary and uncompensated services of private individuals, agencies and organizations that may from time to time be offered and needed; (2) to recommend policies and make recommendations to agencies and officers of the commonwealth and local subdivisions of government to effectuate its purposes; (3) to select an executive director and to acquire adequate staff to perform its duties, subject to appropriation; (4) to establish and maintain offices that it considers necessary, subject to appropriation; (5) to enact by-laws for its own governance; (6) to appoint members to regional chapters of the commission; and (7) to hold regular, public meetings and to hold fact-finding hearings and other public forums as it may consider necessary.

The commission may request from all state agencies such information and assistance as the commission may require. The commission may accept and solicit funds, including any gifts, donations, grants or bequests or any federal funds, for any of the purposes of this section. These funds shall be deposited in a separate account with the state treasurer, be received by the

59 treasurer on behalf of the commonwealth, and be expended by the commission in accordance
60 with law.